

Resolution Criteria

This question resolves as Yes if, before October 1, 2023, a member of the Republican Party introduces a resolution to remove Kevin McCarthy as Speaker of the House and a vote on the resolution is held. Both the introduction of the resolution and the vote must occur before October 1, 2023. Otherwise this question resolves as No. The outcome of the vote and any such resolutions introduced by representatives who are not Republicans are irrelevant for the purposes of this question.

Background Information

Kevin McCarthy was elected Speaker of the US House of Representatives on January 7, 2023, after 15 ballots, the first time since 1923 an election for Speaker required more than one ballot. The contentious election and concessions to the House Freedom Caucus — including rules that allow any member of the House to call for a vote that would oust the Speaker by simple majority — have weakened his position as Speaker.

The rules for the House of Representatives of the 118th Congress adopt those of the 117th Congress with some amendments. The relevant portion of the rules is Rule IX, the text of which is quoted below. The amended rules remove subparagraph (3) of clause 2(a) (shown in bold).

1. Questions of privilege shall be, first, those affecting the rights of the House collectively, its safety, dignity, and the integrity of its proceedings; and second, those affecting the rights, reputation, and conduct of Members, Delegates, or the Resident Commissioner, individually, in their representative capacity only.
2. (a)(1) A resolution reported as a question of the privileges of the House, or offered from the floor by the Majority Leader or the Minority Leader as a question of the privileges of the House, or offered as privileged under clause 1, section 7, article I of the Constitution, shall have precedence of all other questions except motions to adjourn. A resolution offered from the floor by a Member, Delegate, or Resident Commissioner other than the Majority Leader or the Minority Leader as a question of the privileges of the House shall have precedence of all other questions except motions to adjourn only at a time or place, designated by the Speaker, in the legislative schedule within two legislative days after the day on which the proponent announces to the House an intention to offer the resolution and the form of the resolution. Oral announcement of the form of the resolution may be dispensed with by unanimous consent.
 - (2) The time allotted for debate on a resolution offered from the floor as a question of the privileges of the House shall be equally divided between (A) the proponent of the resolution, and (B) the Majority Leader, the Minority Leader, or a designee, as determined by the Speaker.
 - (3) A resolution causing a vacancy in the Office of Speaker shall not be privileged except if offered by direction of a party caucus or conference.**
 - (b) A question of personal privilege shall have precedence of all other questions except motions to adjourn.

On September 19, 2023, journalist Matt Laslo claimed to have discovered a draft motion to vacate the office of Speaker of the House in a bathroom in the US Capitol, with Matt Gaetz as the member to submit the resolution.